

Court No. - 39

Case :- WRIT - C No. - 23178 of 2025

Petitioner :- Peetambar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Krishna Agarawal

Hon'ble Arindam Sinha,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Mr. Rajesh Kumar, learned advocate appears on behalf of petitioner and submits, original load on the electricity connection of his client was 2 kw. It was increased to 3 kw and thereafter to 4 kw. His client seeks direction for restoring original load factor.

Mr. Anubhav Chandra, learned advocate, Standing Counsel appears on behalf of State. Mr. Baleshwar Chaturvedi, learned advocate appears on behalf of respondent nos.3 and 4 (the supply company) and prays for adjournment to obtain instructions regarding relevant clauses in Uttar Pradesh Electricity Supply Code, 2005 providing for increase and decrease of load factor.

List on **7th August, 2025** as fresh.

Order Date :- 28.7.2025

Ashutosh

(Arindam Sinha,J.)

(Dr. Y. K. Srivastava,J.)



2025:AHC:186981-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 23178 of 2025

Peetambar Singh

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s) : Rajesh Kumar

Counsel for Respondent(s) : Baleshwar Chaturvedi, C.S.C., Krishna Agarawal

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. Heard learned counsel for the petitioner and learned counsel for the respondents.

2. The case of the petitioner is that the petitioner is a consumer having valid electricity connection bearing Account No.1556043996 of 2KW, and he is regularly depositing the electricity dues.

3. The grievance of the petitioner is that since June, 2023, the electricity consumption load of the petitioner was illegally increased from 2 KW to 3 KW, however, the petitioner has been regularly depositing the electricity dues of electricity consumption of 3 KW load till July, 2024. Thereafter, the petitioner approached the respondents authority, but despite the same, the electricity consumption was again increased in the month of August, 2024 to 4 KW in place of 3 KW. Being aggrieved by the said arbitrary action of the respondents authority, the petitioner approached the higher authorities of electricity department by making several representations, but no action has yet been taken on same.

4. Learned counsel for the respondents submits that no useful would be served in keeping the writ petition pending and appropriate direction may be issued to the respondent no.4 to consider the grievance of the petitioner.

5. In such view of the fact, considering the facts and circumstances of the case and without going into the merits of the case, the writ petition is **disposed off** permitting the petitioner to submit a fresh representation before the respondent no.4-Executive Engineer, Dakshinanchal Vidhyut Vitran Nigam Limited, Mathura along with a certified copy of this order, raising all his grievances within a period of one month from today. In case, any such

representation is filed by the petitioner, the respondent no.4 shall consider and decide the same in accordance with law after giving due notice and opportunity of hearing to the petitioner expeditiously preferably within a period of one month thereafter.

October 17, 2025

NS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)